

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Chaves	Team: Squad #02	CCRB Case #: 201702849	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 04/12/2017 2:30 PM	Location of Incident: Bathgate Avenue and East 187th Street	18 Mo. SOL 10/12/2018	Precinct: 48		
Date/Time CV Reported Wed, 04/12/2017 5:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/12/2017 5:00 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Adel Eskandar	07264	961520	048 PCT
2. SGT Oliver Castillo	4106	946838	048 PCT
3. POM Andrew John	16950	957714	048 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Shirley Gutierrez	07052	956710	048 PCT
2. POM Andres Zambrano	13633	952365	048 PCT
3. POF Dianna Lopez	22611	947185	048 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Oliver Castillo	Abuse: Sergeant Oliver Castillo stopped § 87(2)(b)	A . Exonerated
B . POM Adel Eskandar	Abuse: Police Officer Adel Eskandar damaged § 87(2)(b)'s property.	B . Exonerated
C . SGT Oliver Castillo	Force: Sergeant Oliver Castillo used physical force against § 87(2)(b)	C . Exonerated
D . POM Andrew John	Abuse: Police Officer Andrew John searched § 87(2)(b)	D . Exonerated
E . POM Adel Eskandar	Discourtesy: Police Officer Adel Eskandar acted discourteously toward § 87(2)(b)	E . Unsubstantiated

Case Summary

On April 12, 2017, § 87(2)(b) called the CCRB and filed this complaint. On the same day, she called and filed this complaint with IAB, who forwarded it to the CCRB via log number § 87(2)(b) on April 17, 2017.

At approximately 2:30 p.m. on April 12, 2017, § 87(2)(b) was walking with her baby and one of her dogs at the intersection of East 187th Street and Bathgate Avenue in the Bronx when she was approached by Sergeant Oliver Castillo, Police Officer Dianna Lopez, Police Officer Adel Eskandar, and Police Officer Shirley Gutierrez of the 48th Precinct. The officers had responded to the area based on a report of multiple dogs being locked in a vehicle. Sergeant Castillo asked § 87(2)(b) if she was the owner of the vehicle in question, and she confirmed that she was (**Allegation A**). Police Officer Eskandar then requested § 87(2)(b)'s ID. § 87(2)(b) refused and got into her vehicle. Police Officer Eskandar then allegedly opened § 87(2)(b)'s vehicle door while she was still holding the interior handle, causing damage to the door interior (**Allegation B**). The officers and § 87(2)(b) then engaged in an extended argument over whether § 87(2)(b) would identify herself. During this argument, Sergeant Castillo allegedly grabbed § 87(2)(b) by the arms and shoulders and attempted to pull her out of the driver's seat of the vehicle (**Allegation C**). § 87(2)(b) remained in the driver's seat, however, and called 911 to complain about the officers' behavior.

As the argument continued, Police Officer Andrew John and Police Officer Andrew Zambrano of the 48th Precinct arrived on scene due to their regular patrol pattern. Police Officer John approached § 87(2)(b)'s vehicle, opened the front passenger door, and looked in a bag that was positioned on the front passenger seat (**Allegation D**). § 87(2)(b) was issued a summons for § 87(2)(b) by Police Officer Eskandar (Board Review 08). Police Officer Eskandar allegedly "tossed" this summons at § 87(2)(b) without attempting to hand it to her (**Allegation E**).

No video footage of this incident was found by the investigation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was offered mediation in regards to this incident, § 87(2)(b)
- According to the New York City Comptroller's Office, as of July 27th, 2017, no Notice of Claim has been filed in regards to this incident.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 02).
- Sergeant Castillo has been a member of the NYPD for nine years, and has four prior allegations in two cases with no substantiated allegations. § 87(2)(g)
- Police Officer Eskandar has been a member of the NYPD for one year, and has no prior allegations.

- Police Officer John has been a member of the NYPD for two years and has no prior allegations.

Potential Issues

According to officer statements and police documents, both Police Officer Lopez and Police Officer Zambrano were present for this incident. However, § 87(2)(b) provided no account of their actions and made no allegations against them, and the interviewed members of service all provided statements indicating that these officers were uninvolved in the incident. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Findings and Recommendations

Allegation A –Abuse of Authority: Sergeant Oliver Castillo stopped § 87(2)(b)

Allegation B –Abuse of Authority: Police Officer Adel Eskandar damaged § 87(2)(b)

s property.

Allegation C –Force: Sergeant Oliver Castillo used physical force against § 87(2)(b)

§ 87(2)(b) was interviewed at the CCRB on April 14, 2017. Sergeant Castillo and Police Officer Eskandar were interviewed on April 28, 2017. Police Officer Gutierrez was interviewed on May 4, 2017. Police Officer John was interviewed on May 15, 2017.

Much of what occurred in this incident is undisputed. It is undisputed that, on the incident date, § 87(2)(b) was walking on the northeast corner of East 187th and Bathgate Avenue when she was stopped by uniformed police officers. § 87(2)(b) was walking with her young child in a stroller as well as one of her dogs. She acknowledged to the officers that she owned a certain vehicle, which was parked on the eastern side of Bathgate Avenue a few car lengths away, as well as the dogs inside of it. § 87(2)(b) returned to her vehicle, where Police Officer Eskandar asked for her ID. § 87(2)(b) refused to provide it, and Police Officer Eskandar explained that she was receiving a summons for animal cruelty. § 87(2)(b) argued extensively with the officers, refusing multiple times to identify herself for the purposes of the summons. § 87(2)(b) became upset, screaming and crying and refusing to respond to the officers' questions and orders. She called 911 and informed the operator that she was scared that the responding officers were not real members of service, and requested that new officers be sent to the scene. Over the course of the argument, Police Officer Eskandar and Sergeant Castillo stood close to § 87(2)(b) blocking her vehicle door from closing with their bodies. Eventually, Police Officer Eskandar was able to identify § 87(2)(b) after officers overheard her providing her first name to the 911 operator and then running a check on her license plate, which confirmed her first name and provided her last name. Police Officer Eskandar then issued her a summons for animal cruelty.

§ 87(2)(b) stated that prior to being stopped she had taken two of her three dogs out of her vehicle to walk them. The third dog had briefly gotten out of the car and then climbed back in. § 87(2)(b) did not say how long the dogs had been in the vehicle prior to her taking them out. One of the rear windows of the car was cracked, and the outdoor temperature was “mild.” After

initially speaking to the officers, § 87(2)(b) got into her vehicle. Police Officer Eskandar approached § 87(2)(b)'s front driver-side window from the rear of the car. He then asked § 87(2)(b) for her ID. § 87(2)(b) asked why he needed it, saying that she had already spoken to Sergeant Castillo and was leaving the area with her dogs. Police Officer Eskandar and § 87(2)(b) went back and forth approximately five times with him asking for the ID and her asking why he wanted it. Then, without issuing any commands, Police Officer Eskandar pulled § 87(2)(b)'s door open. While he succeeded in fully opening the door with his first pull, § 87(2)(b) was holding the interior door release handle and his pulling on the door loosened this handle. § 87(2)(b) provided the investigation with two photographs of the door handle (Board Review 03 and Board Review 04). As the door was opened, § 87(2)(b) tried one time to reach out and grab it, but was only able to reach the door's window with her fingers. Police Officer Eskandar then told § 87(2)(b) that he was going to issue her a summons for § 87(2)(b).

At this point Sergeant Castillo approached § 87(2)(b). He repeatedly asked § 87(2)(b) for her name and her ID. § 87(2)(b) did not answer, but rather called 911. After approximately one minute of her being on the phone, Sergeant Castillo grabbed § 87(2)(b)'s left arm with one hand and reached around the back of her neck towards her other shoulder with his other hand. Sergeant Castillo then tried to pull § 87(2)(b) out of the vehicle. He did not make contact with § 87(2)(b)'s head, torso, or lower body. § 87(2)(b) resisted being removed from the car by grabbing on to the steering wheel. § 87(2)(b) was unable to estimate how long Sergeant Castillo was pulling on her. § 87(2)(b) was not removed from her vehicle. Over the course of the incident, § 87(2)(b) never willingly identified herself in any way to the officers.

Police Officer Eskandar and Police Officer Gutierrez § 87(2)(g) were on sector patrol, they were flagged down by Detective Rosalina Corona of Strategic Response Group 2 (SRG 2) who informed them that a civilian had reported the presence of three dogs in a locked vehicle for approximately 30 minutes. At this time the temperature was warm (estimated by the officers as being between 65°F and 70°F). When the officers approached the vehicle in question, they saw the dogs in the rear of the vehicle. All of the doors were locked and all of the windows were closed. There was no food or water in the vehicle for the dogs, and no one attending to them. Based on these factors and the SRG officer's report, they determined that the conditions existed for animal cruelty. Police Officer Eskandar denied opening § 87(2)(b)'s vehicle door, and stated that the door was open when he approached her after she returned to her vehicle. Both Police Officer Eskandar and Police Officer Gutierrez did not recall any officer, including Sergeant Castillo, making physical contact with § 87(2)(b). Police Officer Eskandar and Sergeant Castillo repeatedly informed § 87(2)(b) that if she did not identify herself that she would be arrested. As per Police Officer Eskandar, the officers ultimately chose not to do so because § 87(2)(b) had a baby with her.

Sergeant Castillo stated that when § 87(2)(b) attempted to close the car door, he held her left wrist and removed her hand from the car door. § 87(2)(b) then pulled her hand away from Sergeant Castillo. § 87(2)(b) did not push back against Sergeant Castillo at this time. At no point in the incident did Sergeant Castillo reach around § 87(2)(b)'s shoulders or arms. At no point did any officer attempt to physically remove § 87(2)(b) from the driver's seat of the vehicle.

Police Officer Eskandar and Police Officer Gutierrez both described the start of this incident as their receiving an account of animal abuse from another officer. Both Police Officer Eskandar and Police Officer Gutierrez noted this report in their memo books (Board Review 07). Sergeant Castillo similarly described first learning of this incident from Police Officer Eskandar and Police Officer Gutierrez, who told him about the SRG officer's report. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

According to New York Agriculture and Markets Law Article 26, Section 353, the law cited on § 87(2)(b)'s summons, a person who deprives any animal of necessary sustenance, food, or drink, or neglects or refuses to furnish it such sustenance or drink is guilty of a class A misdemeanor for cruelty to animals (Board Review 05). According to the New York Police Department Patrol Guide Procedure Number 209-09, when issuing a summons, an officer should remove the violator to command for investigation if there is doubt concerning the violator's identity (Board Review 06). During a vehicle stop, officers are allowed to use their discretion to require an individual to exit their vehicle even without a particularized suspicion. People v. Issac 968 N.Y.S. 2d 631 (2013) (Board Review 09).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation A** be exonerated.

§ 87(2)(g)

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§ 87(2)(g). Therefore, it is recommended that **Allegation B** be exonerated.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g). It is therefore recommended that **Allegation C** be exonerated.

Allegation D – Abuse of Authority: Police Officer Andrew John searched § 87(2)(b)

According to § 87(2)(b) after several minutes of arguing with officers regarding her identification, Police Officer John and Police Officer Zambrano arrived. § 87(2)(b) heard Police Officer John approached § 87(2)(b)'s vehicle, opened the front passenger door, and looked in a "baby bag" that was positioned on the front passenger seat. § 87(2)(b) quickly

pulled this bag away from Police Officer John. As approximately the same time, § 87(2)(b) heard a male officer call out for Police Officer John to “get her ID.” Police Officer John released the bag to § 87(2)(b) and did not search her person, any of her other bags, the vehicle glove compartment, or any area within the vehicle.

Police Officer John provided an account of the portion of the incident that he was present for that was consistent with § 87(2)(b)s. After arriving on scene, he approached § 87(2)(b)s vehicle, opened her front passenger door, and searched one of her bags. He did not take anything out of the bag or obtain any specific information through this search beyond the fact that the bag appeared to contain baby formula. When asked why he searched the bag, Police Officer John articulated a concern, based on her screaming and refusal to cooperate, that § 87(2)(b) was an EDP and represented a possible threat to herself, the officers, or her baby or dogs. Police Officer John stated that he searched the bag to ensure that there wasn’t a weapon inside of it. He stated that there were no specific factors that led him to believe there was a weapon inside of the bag.

An officer is allowed to search a driver's person for their license once the officer has probable cause to arrest the driver, even in the absence of exigent circumstances or an actual arrest. Evans v Solomon 681 F Supp 2d 233 (2010) (Board Review 10).

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§ 87(2)(g)
§ 87(2)(g). Therefore, it is recommended that
Allegation D be exonerated.

Allegation E –Discourtesy: Police Officer Adel Eskandar acted discourteously toward

§ 87(2)(b)

According to § 87(2)(b) over the course of the incident she never willingly identified herself in any way to the officers. She did provide her name to the 911 operator, which prompted Police Officer Eskandar to walk back towards his police vehicle. § 87(2)(b) believed that he used her name to look up further identifying information about her. Based on this information, he issued her a summons, which he “tossed” at her lap without attempting to hand it to her.

Police Officer Eskandar § 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) stating that he approached her, saw that she was still on the phone with 911, and “carefully placed” the summons on her dashboard. He denied throwing or tossing the summons in any way. The other interviewed officers did not see or did not recall the manner in which Police Officer Eskandar provided the summons to § 87(2)(b)

§ 87(2)(g)

. Therefore, it is recommended that **Allegation E be unsubstantiated.**

Squad: 2

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date